IMSAS CONTINUOUS MONITORING MECHANISM (ICMM)

SECOND AUDIT CYCLE

February 2026

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1 PREFACE

1.1 The Organization has long recognised that the effectiveness of its instruments depends not only on their adoption but on their consistent and effective implementation by Member States. The IMO Member State Audit Scheme (IMSAS) was established to provide a structured and objective mechanism to assess how Member States discharge their obligations under the applicable IMO instruments and the IMO Instruments Implementation Code (III Code). Over time, the experience gained from the first audit cycle demonstrated both the value of the Scheme and the need for its further evolution.

1.2 The introduction of the IMSAS Continuous Monitoring Mechanism (ICMM), adopted as part of the revised *Framework and Procedures for the IMO Member State Audit Scheme* through IMO Assembly resolution A.1211(34), represents a significant milestone in that evolution. ICMM moves the Scheme beyond a purely periodic audit model and establishes a structured, data-driven and continuously updated system to monitor implementation and enforcement processes within Member States.

1.3 The purpose of this booklet is to assist in understanding the structure, objectives and operation of ICMM. It seeks to explain, in practical and accessible terms, how the mechanism functions; how it integrates tools such as the State Audit Questionnaire (SAQ), the Gap Analysis based on the Non-exhaustive list of obligations under instruments relevant to the IMO Instruments Implementation Code (resolution A.1208(34))[1] (NEL), and the verification index, and how the information collected through the web-based platform for ICMM (ICMM platform) supports risk-based audit scheduling, determination of audit scope, and follow-up activities.

1.4 This publication is intended for a wide audience, including maritime administrations, policymakers and other stakeholders engaged in the implementation of IMO instruments, who seek a clearer understanding of ICMM.

1.5 Section 3 provides a general overview of ICMM, while sections 4 to 6 provide more detailed information on the mechanism and how it is implemented.

1.6 The effective operation of ICMM relies on cooperation, commitment and transparency among all stakeholders. Through informed and active engagement with the mechanism, Member States can enhance their implementation and enforcement performance, thereby contributing collectively to safer shipping and the protection of the marine environment worldwide.

[1] As periodically revised

2. BACKGROUND

2.1 First audit cycle

2.1.1 At its twenty-eighth regular session, the IMO Assembly adopted a series of resolutions to facilitate the transition of the IMO Member State Audit Scheme from its voluntary phase to the mandatory phase, which commenced in January 2016. To support this transition and to provide the legal and procedural foundation for the conduct of mandatory audits under the Scheme, the following key instruments were adopted:

.1 resolution A.1067(28) on Framework and Procedures for the IMO Member State Audit Scheme;

.2 resolution A.1068(28) on Transition from the Voluntary IMO Member State Audit Scheme to the IMO Member State Audit Scheme;

.3 resolution A.1070(28) on IMO Instruments Implementation Code (III Code), which serves as the audit standard; and

.4 resolution A.1077(28) on 2013 Non-exhaustive list of obligations under instruments relevant to the IMO Instruments Implementation Code, which is kept under review and updated at every session of the Assembly, with the current one being resolution A.1208(34).

2.1.2 Following the adoption of the amendments to eight IMO treaties in 2013 and 2014, the use of the IMO Instruments Implementation (III Code) (resolution A.1070(28)) and the auditing of those treaties became mandatory. These instruments provide the basis for conducting mandatory audits under the nine IMO instruments included in the scope of the Audit Scheme.

2.13 The amended provisions of the eight IMO treaties provide that every Contracting Government or Party is to be audited at periodic intervals in accordance with the audit standard, namely the III Code. The amendments also stipulate that audits are to be conducted based on an overall schedule established by the Secretary-General, taking into account the guidelines adopted by the Organization, and require each Contracting Government or Party to facilitate the conduct of the audit and implement a programme of actions to address any findings arising from the audit in accordance with the relevant guidelines.

2.1.4 Pursuant to the provisions of the above-mentioned instruments, almost all IMO Member States were audited during the first audit cycle. These audits generated a wide range of insights and best practices, providing valuable information on the challenges Member States face in implementing and enforcing the mandatory IMO instruments.

2.1.5 The audits revealed recurring areas where additional capacity-development could further strengthen implementation, including the development of national legislation, shortages of qualified personnel with maritime expertise, and limited coordination among the various national entities responsible for maritime matters. In several cases, these challenges were further compounded by the absence of a comprehensive national maritime strategy.

2.1.6 Furthermore, the analysis of the root causes underlying the findings and observations identified several areas where additional support and development could further strengthen implementation and enforcement. These included resource and institutional capacity constraints, the need to further develop or enhance relevant policies, and opportunities to improve awareness and understanding of applicable requirements. Addressing these areas would assist Member States in continuing to strengthen their ability to give full and effective effect to the provisions of the relevant IMO instruments to which they are Parties.

2.1.7 The analysis of the audit follow-up activities conducted in respect of audits carried out in the first audit cycle indicated that, although some Member States made notable progress in implementing their corrective action plans (CAPs) to address the shortcomings identified during their audits, the overall number of shortcomings effectively closed remained limited. Furthermore, the analysis showed that not all Member States provided comments on the progress of the implementation of their corrective action plans (CPICAPs) for each finding and observation issued as a result of their audits.

2.1.8 The effective implementation of agreed corrective actions in response to audit findings and observations constitutes the ultimate objective of the audit process, as it is through these actions that compliance with the mandatory IMO instruments can be strengthened at the global level.

2.2 Rationale for updating the audit Scheme

2.2.1 The experience gained during the first audit cycle highlighted the need to further strengthen and refine the Audit Scheme to ensure its long-term effectiveness, credibility and sustainability. While the Audit Scheme successfully established a structured and transparent framework for assessing Member States' implementation of the mandatory IMO instruments, the findings and follow-up outcomes revealed areas requiring improvement.

2.2.2 In particular, challenges related to the timely and effective implementation of CAPs, limited reporting on progress, resource constraints and varying levels of institutional capacity underscored the need for a more robust and proactive mechanism. Moreover, the absence of structured measures to address cases of limited follow-up engagement demonstrated the importance of enhancing accountability and oversight within the Scheme.

2.2.3 Updating the Audit Scheme was therefore necessary to introduce a more dynamic, risk-informed and performance-based approach, strengthen follow-up processes, improve transparency, and ensure better alignment between audits and capacity-development efforts. The evolution of the Scheme, including the introduction of the ICMM, reflects this commitment to continual improvement and to supporting Member States in achieving effective and consistent implementation of IMO instruments.

2.3 Evolution of the Scheme in its second audit cycle

2.3.1 The process to update the audit Scheme commenced in July 2019. At its 122nd session, the Council considered, inter alia, a proposal to further develop the Scheme during the second audit cycle. The proposal introduced the concept of continuous monitoring and a risk-based approach, taking into account benchmarking and relevant experience from similar oversight and monitoring programmes implemented by other United Nations agencies.

2.3.2 The IMO Council endorsed the general direction for the further development of the Scheme and the introduction of a continuous monitoring approach in the second audit cycle.

2.3.3 Following disruptions to IMO meetings and the audit schedule caused by the COVID-19 pandemic, the Council, at its 128th session in December 2022, considered proposals to implement a continuous monitoring approach for the second audit cycle and agreed to re-establish the Joint Working Group on the Member State Audit Scheme (JWGMSA) to examine modalities for further developing the Scheme.

2.3.4 The JWGMSA met in October 2023, October 2024, and March 2025, during which it reviewed the proposed modalities and finalised revisions to the *Framework and Procedures for the IMO Member State Audit Scheme* (resolution A.1067(28)) and related documentation

introducing the ICMM. At its 134th session in July 2025, the Council approved the draft Assembly resolution containing the revised Framework and Procedures and endorsed the revised overall audit schedule for the second audit cycle. The Assembly subsequently adopted these revisions through resolution A.1211(34) and endorsed the updated audit schedule.

2.3.5 Subsequently, following the internal IMO processes through the appropriate organs, the Council approved the revised Framework and Procedures for the IMO Member State Audit Scheme and the updated overall audit schedule for the second audit cycle. The Assembly, at its thirty-fourth session, adopted these revisions through resolution A.1211(34), thereby introducing the ICMM within the Scheme.

2.4 Key changes to the audit Scheme

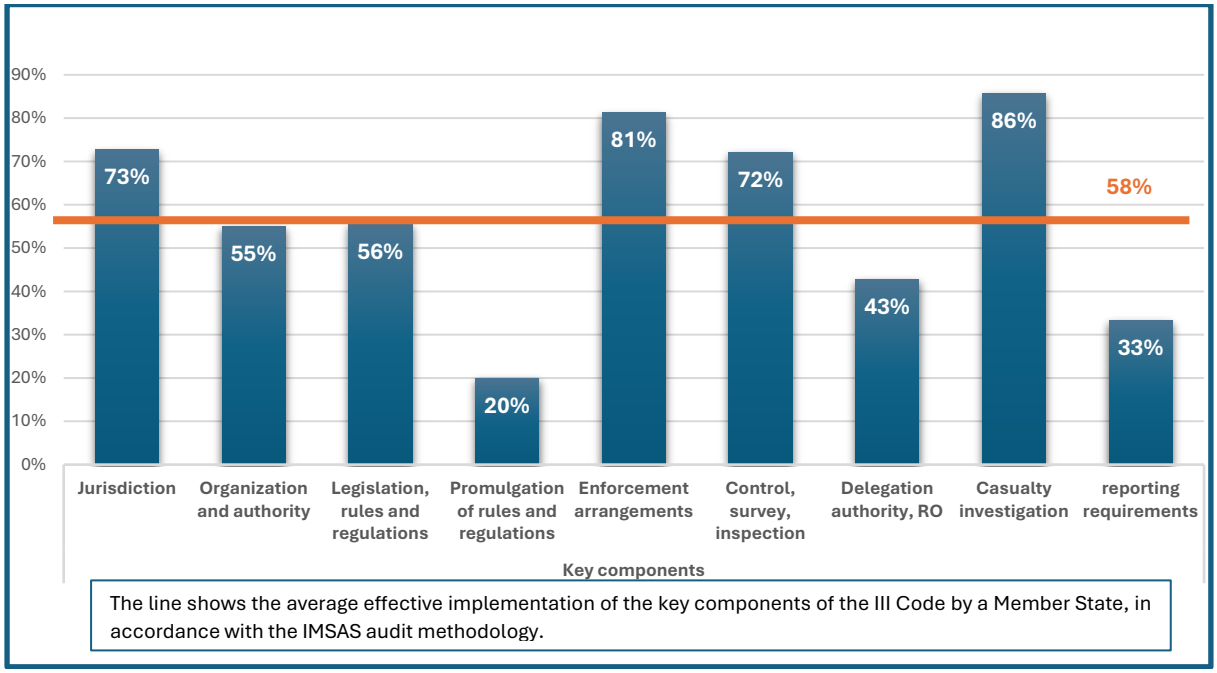
2.4.1 The revised *Framework and Procedures for the IMO Member State Audit Scheme* (resolution A.1211(34)) (Framework and Procedures) introduced a number of substantive enhancements aimed at strengthening its effectiveness, transparency, technical cooperation, capacity-development and sustainability.

2.4.2 Among the most significant changes is the introduction of the ICMM, which establishes the ICMM platform for the ongoing collection, verification and analysis of data related to Member States' implementation and enforcement of the applicable IMO instruments. This marks a shift from a solely periodic audit model to a system that integrates continuous oversight with risk-based planning. The structure, objectives and operation of ICMM are explained in detail in sections 3 to 6 of this booklet.

2.4.3 The revised Framework and Procedures also strengthened the transparency of audit outcomes by providing for the sharing of the executive summary report, the Member State's report on the progress of implementation of the corrective action plan, and the audit follow-up report all Member States.

2.4.4 In addition, the revised Framework and Procedures requires that a limited set of information be made publicly available in graphical form to illustrate the level of implementation of the III Code by audited Member States. The graphical representation and the Effective Implementation percentage (EI%) reflect the degree of compliance across nine key areas. These areas represent essential elements that Member States should consider and address when developing policies, legislation, related rules and regulations, and administrative procedures to implement and enforce the obligations and responsibilities arising from the mandatory IMO instruments. An example of the limited information available to the public on the IMO website is shown in Figure 1 below.

Figure 1: A sample of the information available to the public



2.4.5 Furthermore, the revised Framework and Procedures requires that status reports on the implementation of CAPs by individual Member States be reviewed by the Council. This aims to enhance transparency and to better identify areas where Member States may face challenges in implementing CAPs in a timely and effective manner, allowing additional support to be provided where needed.

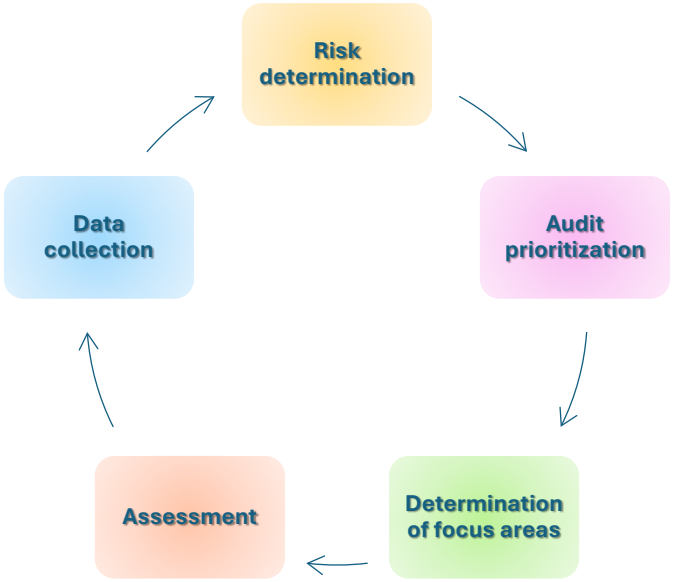
2.4.6 Moreover, the revised Framework and Procedures introduce provisions for conducting audits remotely in exceptional circumstances, require nominated auditors to possess relevant auditing experience, streamline the information provided by Member States, simplify the reporting of audit outcomes, and offer additional guidance on the conduct and reporting of audit follow-up activities.

3. ICMM OVERVIEW

3.1 Stages of the ICMM

3.1.1 The ICMM introduces a structured and continuous process designed to support the effective implementation of the Audit Scheme. Rather than relying solely on periodic audits, ICMM establishes an ongoing cycle that includes data collection, analysis and risk assessment, audit prioritisation, determination of audit focus areas, the conduct of audits, and subsequent audit follow-up. The mechanism can be understood in broad terms through several interconnected stages, as illustrated in Figure 2.

Figure 2: Stages of ICMM



3.1.2 The effective operation of ICMM depends on several key factors. Since ICMM is designed as a continuous, data-driven process supporting the Audit Scheme, its success relies on the commitment and cooperation of Member States and on the effective management of the system.

3.1.3 A fundamental factor for the successful implementation of ICMM is the strong commitment of Member States. IMO Member States must recognise ICMM as an important tool for improving the implementation and enforcement of the mandatory IMO instruments rather than viewing it solely as a reporting requirement. Active engagement, timely submission of information and sustained follow-up on corrective actions are essential to ensure that the mechanism functions effectively.

3.2 Data collection

3.2.1 The first stage of ICMM involves the systematic provision of information by Member States through the ICMM platform. Member States are required to submit and periodically update information relating to their implementation and enforcement of the mandatory IMO instruments. This information is primarily provided through the following three key tools:

.1 verification index, which monitors the status of identified shortcomings and tracks progress on implementing corrective actions;

.2 gap analysis tool, which demonstrates how obligations arising from the mandatory IMO instruments are incorporated into national legislation and how responsibilities for their implementation and enforcement are allocated; and

.3 State audit questionnaire (SAQ), which captures the institutional, legislative and organisational arrangements of the Member State, as well as the processes in place for the implementation and enforcement of the mandatory IMO instruments.

3.2.2 The reliability of ICMM depends heavily on the quality of the information provided by Member States. Information submitted must be accurate, complete, and regularly updated.

3.2.3 Timely updates are particularly important. Member States are expected to update the information whenever relevant changes occur, such as the completion of corrective actions, legislative updates or institutional restructuring.

3.3 Risk assessment and audit prioritization

3.3.1 Risk assessment and audit prioritization are important elements of ICMM, introducing a risk-based approach to the audit process while maintaining the principle that all Member States are subject to audit within the established audit cycle. This approach ensures that audits are scheduled and conducted in a manner that makes the most effective use of available resources, while preserving fairness and transparency among Member States.

3.3.2 During this stage, the outcomes of audit follow-up activities from the previous audit cycle are assessed, and the audits of Member States within the same group are prioritized based on the number of unresolved (non-signed-off) findings and observations. Member States with a higher number of outstanding shortcomings are generally scheduled earlier in the audit cycle, while those with fewer outstanding issues are scheduled later within the same group. Further information on this process is provided in section 4, which explains in greater detail how the overall audit schedule is developed.

3.4 Determination of focus areas

3.4.1 A key phase of ICMM is the determination of the scope of individual audits. The information provided by Member States through the ICMM platform is analysed to assess the level of implementation of the mandatory IMO instruments and the III Code, and to determine the extent of the on-site audit.

3.4.2 This assessment is based on three key indicators derived from the information submitted through the ICMM tools:

.1 verification index indicator, which measures progress in addressing audit findings through the implementation of corrective actions;

.2 gap analysis indicator, which evaluates the extent to which obligations under the mandatory IMO instruments have been incorporated into national legislation; and

.3 SAQ indicator, which reflects the level of compliance demonstrated through the responses provided by the Member State.

3.4.3 Where the combined results of these indicators demonstrate a sufficiently high level of implementation of the mandatory IMO instruments and the III Code, the Member State may qualify for a limited on-site audit (LOA). In such cases, the audit focuses on specific areas requiring verification. Conversely, where the indicators indicate a lower level of implementation of the mandatory IMO instruments and the III Code, a full on-site audit (FOA) is conducted, covering the entire scope of the audit standard. Section 5 explains in greater detail how the indicators are calculated and how the eligibility for LOA is determined.

3.4.4 In addition to determining the scope of the audit, ICMM also supports the identification of specific focus areas for LOA. The information provided by Member States through the ICMM tools is analysed to identify areas where potential gaps, inconsistencies or implementation challenges may exist.

3.4.5 Based on this analysis, the sections of the audit standard requiring further verification during the on-site audit are identified. For Member States eligible for LOA, areas related to flag, port or coastal State activities where potential gaps have been identified will normally be

included within the audit scope. However, the common areas of the audit standard (Part 1 of the III Code) remain within the scope of all audits. In addition, if evidence gathered during the audit indicates the need to examine areas not initially included in the scope, the scope of the audit may be expanded accordingly.

3.4.6 Section 6 of this booklet provides further details on how audit focus areas are determined and identifies the sections of the III Code that may be excluded from an audit based on the results generated by the ICMM tools.

3.4.7 This approach ensures that the scope of audits is proportionate to the level of implementation demonstrated by the Member State, while preserving the integrity and effectiveness of the audit process. It also enables more targeted and efficient audits, focusing on areas where verification is most needed.

3.5 Assessment

3.5.1 Audits remain a central component of the Audit Scheme and play a key role within ICMM. While ICMM introduces a continuous monitoring approach, on-site audits continue to provide the primary means to verify, through direct examination and interaction, the effectiveness of the implementation and enforcement of the provisions of the mandatory IMO instruments and the III Code.

3.5.2 During an audit, the audit team reviews documentation, conducts interviews with relevant personnel and examines the processes and procedures established by the Member State to implement and enforce the applicable mandatory IMO instruments and the III Code.

3.5.3 Based on the evidence gathered, the audit team may identify findings which indicate non-compliance with mandatory requirements or observations which indicate non-compliance with the recommendatory provisions of the III Code. These findings and observations are recorded in the verification index.

3.5.4 At the conclusion of the audit, the audited Member State is required to develop a CAP to address the identified findings and, where appropriate, observations. The CAP outlines the actions to be taken, the entities responsible and the expected timeframe for implementation.

3.5.5 Following the audit, Member States are required to provide periodic updates on the progress made in implementing their CAPs through the ICMM platform.

3.5.6 Approximately three to four years after the audit, an audit follow-up is conducted. The purpose of the follow-up is to verify that the corrective actions identified in the CAP have been effectively implemented and that the shortcomings identified during the audit have been properly addressed.

3.5.7 Once corrective actions have been implemented, the audit team assesses the evidence provided by the Member State to confirm whether the actions taken adequately address the identified shortcomings. Where appropriate, findings may then be signed-off and recorded in the verification index.

4. AUDIT CYCLE AND SCHEDULE

4.1 Prioritisation of audits

4.1.1 In accordance with section 4.2 of the Procedures (Part II of the Framework and Procedures), each Member State shall be audited once within a nine-year audit cycle, in line with the overall schedule established by the Secretary-General.

4.1.2 For the purpose of determining audit priority, Member States are grouped according to the start date of their audits in the first audit cycle. Each group is structured so that its audits can be completed within a two-year period.

4.1.3 Within each group, the audit priority is determined by the total number of outstanding shortcomings identified in the previous cycle. Outstanding shortcomings refer to findings and observations for which corrective actions have not been verified as effectively implemented during the audit follow-up process. Member States with the highest number of outstanding shortcomings are scheduled for audit first, while those with the fewest are scheduled last. Where two or more Member States have the same number of outstanding shortcomings, priority is determined by the start date of their audit in the first audit cycle.

4.1.4 In line with section 4.2 of the Procedures and taking into account the annual capacity to conduct approximately 40 audits, Member States were divided into five groups based on the actual dates of their audits during the first audit cycle. The grouping was designed to accommodate the completion of the audit follow-up, distribute the audit workload evenly across the cycle, and ensure that each group could be audited within a two-year period..

4.1.6 Audits for Group 1 are scheduled to commence in July 2027, and the second audit cycle is expected to be completed by December 2036. The overall audit schedule for the second audit cycle and the established groups, as endorsed by Assembly at its thirty-fourth session, are set out in the appendix.

4.2 Updating of the audit schedule

4.2.1 As shown in the appendix, only the audits for Group 1 have been prioritised based on the number of outstanding shortcomings identified following the completion of the audit follow-up process. The audits for the remaining groups will be prioritised based on their respective audit follow-up processes, and the overall audit schedule will be updated periodically and reported to the Council. The most current version of the audit schedule is available on the Organization’s website.

4.2.2 In accordance with paragraph 4.2.1.3 of the Procedures, each Member State will be notified of the projected date of its audit as early as possible, and not less than 18 months in advance.

4.2.3 Notwithstanding the established schedule, the actual sequence of audits within each group may be adjusted by the Secretary-General to take into account overriding considerations, such as adverse weather events (e.g. cyclones) in certain regions, major religious observances, and the availability of auditors.

5. LIMITED ON-SITE AUDITS (LOAs)

5.1 Eligibility of Member States for LOA

5.1.1 As outlined in section 3, Member States are required to complete the information requested in the ICMM platform, through the verification index, the gap analysis tool, and the SAQ, and to update this information periodically, as necessary. The information submitted through these tools is used to assess the Member State’s eligibility for LOA and to identify the areas that should receive particular focus during the audit and those that may be considered for exclusion from the LOA.

5.1 2 Six months prior to the scheduled audit period, the audit team reviews the information submitted by the Member State through the ICMM platform to evaluate the level of effective

implementation of the applicable IMO instruments and to determine whether LOA can provide sufficient assurance of compliance.

5.1.3 In accordance with paragraph 4.3 of the Procedures, a Member State's eligibility for an LOA is determined based on the verification index, gap analysis, and SAQ indicators, calculated as follows:

$$\text{Verification index indicator} = \frac{\text{Number of Forms B with completed corrective actions}}{\text{Total number of Forms B}}\%$$

$$\text{Gap analysis indicator} = \frac{\text{Number of applicable NEL obligations with provided information indicating compliance}}{\text{Total number of applicable obligations stipulated in the NEL}}\%$$

$$\text{SAQ indicator} = \frac{\text{Number of applicable responses indicating compliance}}{\text{Total number of applicable questions in SAQ}}\%$$

5.1.4 Forms B are completed by the Member State and reviewed by the audit team. They identify the root cause(s) of a shortcoming and specify the corrective actions to be taken to address both the root cause(s) and the shortcoming identified.

5.1.5 Applicable Non-exhaustive list of obligations (NEL) refer to the obligations listed in the NEL that apply to the audited Member State, taking into account the instruments to which the State is a Party and the activities it performs.

5.1.6 Similarly, applicable questions in SAQ refer to the questions in SAQ that apply to the audited Member State, taking into account the instruments to which the State is a Party and the activities it performs.

5.1.7 Member States qualify for an LOA if the average score of the three indicators, verification index, gap analysis, and SAQ, is 70% or higher. Member States that do not meet this threshold are required to undergo a FOA.

5.1.8 Sections 5.2 to 5.4 below provide more information on how to calculate these indicators.

5.2 Calculating the verification index indicator

5.2.1 The verification index catalogues all requirements and recommendations of the III Code, following the structure of the Code. When completed, it provides a clear overview of the Member State's level of compliance with the provisions of the III Code.

5.2.2 The verification index is initially completed by the audit team and communicated to the audited Member State as part of the audit report. For each requirement or recommendation of the III Code listed in the verification index, the audit team provides a brief, concise comment indicating the Member State's level of compliance.

5.2.3 The verification index is a dynamic document that is updated periodically. Once the audit follow-up is complete, the audit team updates the verification index to reflect the results. In addition, Member States should update the verification index after the completion of the audit follow-up whenever they implement outstanding corrective actions related to findings or observations that were not verified as effectively implemented during the audit follow-up.

5.2.4 To calculate the verification index indicator, the audit team reviews the information provided through the verification index together with any additional information submitted after the completion of the audit follow-up. The purpose of this review is to determine whether the

information and supporting evidence demonstrate that the corrective actions have been effectively implemented and that the Member State now complies with the relevant requirements and recommendations of the III Code. The outcome of this assessment is then recorded in the verification index assessment tool.

5.2.5 Once the information contained in the verification index has been reviewed, any additional information submitted by the Member State has been assessed, and the verification index assessment tool has been completed, the audit team calculates the verification index indicator. The indicator is calculated by dividing the number of Forms B for which corrective actions have been completed by the total number of Forms B submitted by the Member State and multiplying the result by 100 to express it as a percentage.

5.2 Calculating the gap analysis indicator

5.2.1 The gap analysis is a mechanism based on the Non-exhaustive list of obligations (NEL) that assists Member States in identifying potential gaps in the implementation of their obligations under the mandatory IMO instruments, including obligations that arise when certain rights are exercised.

5.2.2 Through this tool, Member States are required to indicate, for each applicable obligation listed in NEL, how the obligation has been incorporated into national legislation and which entity or entities are responsible for its implementation and enforcement.

5.2.3 As the gap analysis assessment tool is based on NEL, it is updated whenever a new version of NEL is adopted, which typically occurs every two years.

5.2.4 To calculate the gap analysis indicator, the audit team first reviews the information submitted by the Member State through the gap analysis assessment tool available on the ICMM platform. During this review, the audit team examines each reference to an applicable mandatory IMO instrument to determine whether the Member State has adopted the necessary national legislation and assigned responsibility to the relevant entity or entities for implementing each provision.

5.2.5 The formula used to calculate the gap analysis indicator takes into account only the number of applicable NEL obligations. To identify these obligations, the audit team considers the activities of the Member State, based on the information provided through the SAQ, as well as the applicable mandatory IMO instruments. Once the audit team has determined which obligations are applicable to the Member State and identified those for which the information provided indicates compliance, the gap analysis indicator can be calculated. This is done by dividing the number of applicable NEL obligations for which information indicates compliance by the total number of applicable obligations listed in NEL and multiplying the result by 100 to express the indicator as a percentage.

5.3 Calculating the SAQ indicator

5.3.1 As shown in appendix 2 of the Procedures, SAQ is an inquiry form divided into four parts, corresponding to the four parts of the III Code. Member States should complete the SAQ well in advance of the audit and update it periodically. The SAQ is intended to provide comprehensive information on the organisational structure of the entities carrying out activities under the III Code, as well as on their legal frameworks and the processes used to implement and enforce the applicable IMO instruments.

5.3.2 A replica of SAQ, capturing its status at the start of the audit, is linked to the audit interim and final report. This replica is also made available to all Member States through the

final report, thereby strengthening data collection, encouraging collaboration, and supporting continuous improvement in the implementation and enforcement of IMO instruments.

5.3.3 As indicated in section 3.2, the reliability of ICMM largely depends on the quality of the information provided by Member States. The information submitted must therefore be accurate, complete and regularly updated. Member States should ensure that all sections of SAQ are completed and that the requested information is provided with sufficient detail. The information contained in SAQ is particularly important, as it provides key background information for the audit and is essential for the effective preparation of the audit team.

5.3.4 Following the review of SAQ, the audit team may request additional information or clarification from the Member State to ensure that sufficient information is available to assess compliance with the relevant provisions of the III Code and to support the preparation of the audit.

5.3.5 Once the requested information or clarifications have been provided, the audit team evaluates whether the information contained in SAQ demonstrates compliance with the relevant provisions of the III Code. In carrying out this assessment, the audit team also considers information from the gap analysis tool, the verification index, and other relevant data available in the Global Integrated Shipping Information System (GISIS).

5.3.6 It should be noted that the evaluation of the information provided through SAQ does not constitute a document-based audit. Rather, it represents a preliminary assessment intended to determine whether the Member State has established the necessary mechanisms and arrangements for the implementation of the relevant provisions of the III Code.

5.3.7 For each question in the SAQ assessment tool, the audit team records the outcome of its assessment by classifying it r as “Adequate”, “Inadequate”, Non-Compliance” or N/A” one of the following categories:

5.3.8 The SAQ indicator is calculated by dividing the number of questions assessed as “Adequate” (i.e. the information provided indicates compliance with the specific provisions of the III Code) by the total number of applicable questions and multiplying the result by 100 to express the indicator as a percentage.

5.4 Results of the LOA eligibility assessment

5.4.1 After calculating the gap analysis, verification index, and SAQ indicators, the audit team determines the average of these three indicators in order to assess the audited Member State’s eligibility for a LOA. As outlined in paragraph 5.1.6, a Member State qualifies for an LOA when the average of these three indicators is 70% or higher.

5.4.2 The result of the eligibility assessment is communicated to the Member State approximately three months before the audit. Where the Member State qualifies for a LOA, the audit team subsequently conducts a further assessment to determine the areas that will constitute the focus of the audit.

5.4.3 The eligibility assessment conducted by the audit team to determine whether a Member State qualifies for a LOA does not form part of the audit itself. Any potential shortcomings identified during this assessment do not constitute audit findings or observations and must be verified during the audit. Conversely, the absence of identified shortcomings in particular areas during the assessment does not preclude the possibility that shortcomings may be identified during the audit.

6 AREAS THAT COULD BE EXCLUDED FROM LOA

6.1.1 One of the main objectives of ICMM is to enhance the effectiveness of the Audit Scheme by directing audit activities towards specific areas identified through a risk-assessment methodology.

6.1.2 For Member States that qualify for a LOA, specific provisions of Parts 2, 3 and 4 of the III Code may be excluded from the audit scope, provided that the following conditions are met:

.1 there are no outstanding findings or observations referring to a paragraph under the area to be excluded;

.2 the information provided through the gap analysis indicates compliance with the applicable provisions listed in NEL relevant to the area to be excluded; and

.3 the information provided through SAQ, once verified by the audit team, indicates compliance with all paragraphs within an area to be excluded.

6.1.3 In accordance with paragraph 4.4.1 of the Procedures, Part 1 (Common Areas) of the III Code, which addresses the general functions of a maritime administration, is fundamental to any audit of the other parts of the Code. Accordingly, the provisions of Part 1 are examined in every LOA.

6.1.4 Determining which provisions of Parts 2, 3 and 4 of the III Code may be excluded from a LOA requires a comprehensive analysis of the assessment results derived from the information submitted through the gap analysis, the verification index and SAQ.

6.1.5 The III Code paragraphs associated with an outstanding finding or observation are identified in the verification index assessment tool. Similarly, the paragraphs of the III Code that appear to be effectively implemented, based on the information provided in SAQ, are highlighted in the SAQ assessment tool. To determine which paragraphs of the III Code appear to be effectively implemented according to the gap analysis, the audit teams use the NEL–III Code cross-matrix, which identifies the correspondence between the obligations assessed through the gap analysis and the relevant provisions of the III Code.

6.1.6 By consulting this matrix, the audit teams can identify which provisions of the III Code correspond to obligations classified as “Inadequate” in the gap analysis assessment tool. This enables the audit teams to determine which III Code paragraphs appear not to be effectively implemented, and, by extension, which paragraphs are effectively implemented.

6.1.7 Once the analysis has been completed, the audit team can determine which paragraphs of the III Code may be excluded from LOA. In doing so, it should be taken into account that, in accordance with paragraph 4.4.3 of the Procedures, where a provision of the III Code under the section on implementation cannot be excluded from the audit, the scope of LOA must automatically be extended to include the corresponding provisions under the sections on enforcement, and evaluation and review.

6.1.8 As soon as the analysis is completed, the outcome is communicated to the Member State concerned in order to finalise the scope of the audit.

APPENDIX

OVERALL AUDIT SCHEDULE

GROUP 1[2]

Member States scheduled to be audited in 2027

No.	Member State	Audit period
G1/1	Somalia	July
G1/2	[Syrian Arab Republic]	tbc
G1/3	Iran (Islamic Republic of)	July
G1/4	Israel	September
G1/5	Kiribati	July
G1/6	Vanuatu	September
G1/7	Cuba	September
G1/8	Papua New Guinea	October
G1/9	Guinea	November
G1/10	Nicaragua	November

Member States scheduled to be audited in 2028

No.	Member State	Audit period
G1/11	Côte d'Ivoire	January
G1/12	Togo	March
G1/13	Gabon	June
G1/14	Democratic Republic of the Congo	September
G1/15	Mauritania	October
G1/16	Seychelles	January
G1/17	Cabo Verde	January
G1/18	Sri Lanka	March
G1/19	Venezuela (Bolivarian Republic of)	May
G1/20	Bangladesh	March
G1/21	Ghana	February
G1/22	Cambodia	April
G1/23	Senegal	November
G1/24	Mongolia	June
G1/25	Jordan	September
G1/26	Portugal	June
G1/27	Nigeria	September
G1/28	Albania	November
G1/29	Egypt	October
G1/30	Oman	October

Member States scheduled to be audited from January to June 2029

No.	Member State	Audit period
G1/31	Paraguay	February
G1/32	Bahrain	March
G1/33	Kazakhstan	March
G1/34	Monaco	May
G1/35	Serbia	March
G1/36	Hungary	June
G1/37	Slovakia	April
G1/38	Qatar	February
G1/39	United Arab Emirates	March
G1/40	Azerbaijan	June

[2] The actual sequence of audits within each group will be subject to adjustment by the Secretary-General based on overriding factors.

AUDIT SCHEDULE FOR GROUPS 2 TO 5[3]

JULY 2029 TO DECEMBER 2036

Group 2 July 2029 to June 2031	Group 3 July 2031 and June 2033	Group 4 July 2033 to June 2035	Group 5 July 2035 to Dec 2036
Algeria	Argentina	Antigua and Barbuda	Angola
Barbados	Australia	Bahamas	Belarus
Bolivia (Plurinational State of)	Brazil	Belgium	Belize
Brunei Darussalam	Bulgaria	Benin	Bosnia and Herzegovina
Comoros	Cameroon	China	Eritrea
Congo	Canada	Colombia	Haiti
Costa Rica	Chile	Cook Islands	Iraq
Czechia	Cyprus	Croatia	Mozambique
Djibouti	Democratic People's Republic of Korea	El Salvador	Panama
Dominica	Denmark	Estonia	
Equatorial Guinea	Dominican Republic	Faroes, Denmark	
Fiji	Ecuador	Finland	
Gambia	Ethiopia	Georgia	
Grenada	France	Guinea-Bissau	
Guatemala	Germany	Honduras	
Guyana	Greece	Hong Kong, China	
Iceland	Italy	India	
Kenya	Japan	Indonesia	
Kuwait	Luxembourg	Ireland	
Lebanon	Malaysia	Jamaica	
Macao, China	Maldives	Latvia	
Madagascar	Marshall Islands	Liberia	
Mauritius	Namibia	Libya	
Montenegro	Netherlands (Kingdom of the)	Lithuania	
Myanmar	New Zealand	Malawi	
Palau	Norway	Malta	
Saint Lucia	Pakistan	Mexico	
Samoa	Philippines	Morocco	
Sao Tome and Principe	Poland	Nauru	
Sierra Leone	Republic of Korea	Peru	
Solomon Islands	Republic of Moldova	Russian Federation	
Sudan	Romania	Saint Kitts and Nevis	
Suriname	Saudi Arabia	Saint Vincent and the Grenadines	
Tonga	Singapore	San Marino	
Trinidad and Tobago	Spain	Slovenia	
Turkmenistan	Sweden	South Africa	
Tuvalu	Thailand	Switzerland	
Ukraine	United Kingdom	Tunisia	
United Republic of Tanzania	United States	Türkiye	
Viet Nam	Uruguay	Zambia	

[3] The names of Member States and Associated Members in Groups 2 to 5 are listed in alphabetical order; the detailed sequence of audits will be determined once follow-up audits in each group have been completed, after which the overall audit schedule will be updated and reported as part of the progress report on the implementation of the Scheme.